

Amendment No. 1 to SB0673

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 673*

House Bill No. 661

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Comprehensive Assault Crime Intervention Act."

SECTION 2. Tennessee Code Annotated, Section 39-13-111(d), is amended by deleting the subsection and substituting:

(d) As part of a defendant's alternative sentencing for a violation of this section:

(1) The sentencing judge shall direct the defendant to complete a batterer's intervention program that meets the requirements in § 38-12-110, if such a program is available within the county, and has been certified by the domestic violence state coordinating council. A batterer's intervention program is not deemed complete until the full term of the program is completed, and a judge shall not authorize a defendant to attend less than the full term of a program as part of a plea agreement or otherwise. The defendant's knowing failure to complete such an intervention program is considered a violation of the defendant's alternative sentence program and the sentencing judge may revoke the defendant's participation in such program and order execution of sentence. The defendant must pay the cost of the batterer's intervention program, notwithstanding the defendant's indigence; and

(2) The sentencing judge may direct the defendant to complete a drug or alcohol treatment program.

SECTION 3. Tennessee Code Annotated, Section 40-32-107, is amended by deleting subdivision (a)(1)(D)(i) and substituting:

(i) Section 39-13-101(a)(1) and (2) — Assault, if:

(a) The offense was committed prior to July 1, 2000; or

(b) The offense was committed on or after July 1, 2000, and the petitioner was originally charged with domestic assault, under § 39-13-111, but was convicted of or plead guilty or no contest to assault;

SECTION 4. Tennessee Code Annotated, Section 38-12-110, is amended by adding the following new subsection:

(d) The council shall prescribe the term of the batterer's intervention programs to meet for a minimum of twenty-six (26) weeks and not more than forty-eight (48) weeks. Each meeting must be at least two (2) hours long. The ratio of participants to intervention counselors must be not more than six (6) participants to one (1) counselor, with not more than ten (10) participants in each course.

SECTION 5. Tennessee Code Annotated, Section 39-17-315, is amended by adding the following new subsection:

(n) In addition to any other punishment that may be imposed for a violation of this section, the sentencing judge shall require the defendant to attend a batterer's intervention program, if such a program is available within the county, that has been certified by the domestic violence state coordinating council, pursuant to § 38-12-110. The defendant must pay the cost of the batterer's intervention program, notwithstanding the defendant's indigence.

SECTION 6. Tennessee Code Annotated, Section 38-12-109, is amended by deleting the last sentence of the section and substituting:

The continuing education curriculum must be equivalent to the training required under § 36-6-702; provided, that a judge is not required to receive additional continuing education under this section if the judge currently receives continuing education under §

36-6-702. The continuing education course may be offered in person or virtually by the administrative office of the courts in conjunction with the annual meetings of the judicial conferences in accordance with §§ 17-3-104, 17-3-203, and 37-1-504.

SECTION 7. This act takes effect July 1, 2026, the public welfare requiring it.